

Kiran Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 July 2023 · 2023:AHC:146275-DB · WRIT - C No. 21462 of 2023 · **Writ disposed; representation to be decided under the Supply Code, no merits finding.**

HEADNOTE

With consent, and without any opinion on the merits, the Division Bench disposed of the writ and directed the respondents to decide Kiran Devi's representation for restoration of her personal tube-well connection strictly in accordance with law and the U.P. Electricity Supply Code, 2005. The Department's statement that dues were outstanding since 2019 was left undecided.

FACTUAL SUMMARY

Kiran Devi moved the Allahabad High Court to restore the electricity connection of her personal tube-well and to direct respondent no. 3 to decide her representation dated 25 March 2023 under the U.P. Electricity Supply Code, 2005. The Electricity Department accepted notice. Its counsel, on instructions, told the Court that dues had remained outstanding against her since 2019 and that a new connection could be given if she cleared those dues.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

decision of representation for restoration of tube-well supply

HOLDING

With consent, and without expressing any opinion on the merits, the writ was disposed of by directing the respondents to decide the petitioner's representation dated 25.3.2023 (the operative paragraph writes 25.3.3034) strictly in accordance with law and the U.P. Electricity Supply Code, 2005, expeditiously. Whether dues outstanding since 2019 bar restoration or a new connection was not decided. ¶ 4

FLAG The order invokes the U.P. Electricity Supply Code, 2005 as a whole and states no clause number. The prayer dates the representation 25.3.2023; paragraph 4 writes 25.3.3034.

PRINCIPLE TAGS

representation-to-be-decided-in-accordance-with-supply-code A writ seeking restoration of a tube-well connection and a decision on a representation under the U.P. Electricity Supply Code, 2005 was disposed, with consent and without a merits finding, by directing the respondents to decide that representation strictly in accordance with law and the Code. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERSONAL TUBE-WELL CONNECTION MUST BE RESTORED, AND WHETHER DUES OUTSTANDING SINCE 2019 MUST BE CLEARED BEFORE A NEW CONNECTION

The Department's instructions were recorded. The Court expressed no opinion on the merits and left the representation to be decided under the Supply Code. ¶ 3-4